



CHAPTER cxlix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Scottish Episcopal Clergy Widows' and Orphans' Fund. A.D. 1903.

[11th August 1903.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Scottish Episcopal Clergy Widows' and Orphans' Fund Order Confirmation Act 1903. Short title.

SCHEDULE.

A.D. 1903.

SCOTTISH EPISCOPAL CLERGY WIDOWS' AND ORPHANS' FUND.

Provisional Order to establish a Fund for providing Annuities for the Widows and Orphan Children of the Bishops and Clergy of the Episcopal Church in Scotland and for other purposes.

WHEREAS the bishops and clergy commonly known as the bishops and clergy of the Episcopal Church in Scotland (hereinafter called "the Church") did upon the 13th day of November 1793 by virtue and in terms of the Act of Parliament 33 George III. cap. 54 entitled "An Act for the relief and encouragement of Friendly Societies within Great Britain" form themselves into a friendly society under the name of "the Scotch Episcopal Friendly Society" (hereinafter called "the Society") for the purpose of raising and establishing a fund called in the rules of the Society "the General Fund" for the relief of widows and orphan children of the original members of the Society and of those of members afterwards to be admitted and for the relief under specified circumstances of such of the members themselves as should be in indigent circumstances:

And whereas the Society raised the general fund and has administered the same under its articles or rules as originally framed or as from time to time revised altered or amended under the laws for the time being regulating friendly societies:

And whereas for more than half a century the Society has taken no action for carrying into effect the relief of its members in indigent circumstances and under its present rules uses the general fund solely for the relief of the widows and children of its members:

And whereas many of the bishops and clergy of the Church are not members of the Society and in the event of their leaving widows and children such widows and children would not be entitled to relief from its funds:

And whereas there was formed in the year 1876 a representative body of the Church called "the Representative Church Council" (hereinafter called "the Church Council") which is

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recognised by the canons of the Church as the organ of the Church A.D. 1903.
in matters of finance : —

And whereas one of the objects of the Church Council as defined in the constitution thereof is the raising of a fund for the widows and children of the clergy of the church :

And whereas the Church Council annually raises inter alia certain funds viz.—(1) a clergy sustentation fund (2) a home mission fund and (3) an aged and infirm clergy fund which are administered by it in making additions to the incomes of the bishops and clergy of the Church including special provision for clergy with smaller stipends and in making provision for the bishops and clergy of the Church who through age or infirmity are incapacitated for the discharge of their sacred duties and thereby fulfils the object of the Society not now discharged by it of relieving such of its members as may be in indigent circumstances :

And whereas it is expedient that the work of the Society for the relief of the widows and children of the clergy should be extended and placed on a wider basis and such object can best be secured by transferring the property and liabilities of the Society to a body in the management of which the Church Council shall be represented so that the work may be carried on in alliance with the Church Council :

And whereas it has been agreed between the Society and the Church Council that a body shall be incorporated to be called “the Corporation of the Scottish Episcopal Clergy Widows' and “Orphans' Fund” (hereinafter called “the Corporation”) to which the general fund of the Society shall be transferred for the purpose of continuing the annuities at present paid by the Society to the widows and children of now deceased members of the Society and for the purpose of paying the annuities to the widows and children of present members of the Society for which the Society is liable on the decease of such members and for the further purpose of providing annuities to the widows and children of all bishops and clergy of the Church whether at present members of the Society or not who may in terms of this Order become members of the Corporation and conform to the regulations thereof and that the Society shall be dissolved :

And whereas it has been agreed between the Society and the Church Council that with the exception of fines on marriage or re-marriage and age equalisation taxes as provided by the rules of the Society and any arrears of contributions due by members of the Society at the commencement of this Order with interest

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A.D. 1903. — thereon (all of which if not paid to the Corporation shall be burdens upon and deductible from the annuities to which the widows and children of such members would be entitled in respect of their being widows and children of members of the Society) no contributions shall be payable by members of the Society as such to the Corporation in respect of the annuities secured to their widows and children in terms of the rules of the Society and that such other modifications in reference to the contributions of such members as are hereinafter provided shall be made :

And whereas it has been agreed between the Society and the Church Council that the provision in the rules of the Society that any member thereof who should leave Scotland to exercise his ministry in any Church in communion with the Church should ipso facto forfeit his membership in the Society but be entitled on granting a discharge on behalf of himself his wife and children of all claims against the Society to receive back a certain part of the payments which had been made by him to the Society shall be cancelled and that no member of the Society so leaving Scotland and so exercising his ministry shall be held as having thereby forfeited all or any of his rights as a member of the Society so far as his widow and children are concerned and that he shall have no right to receive back any part of the payments made by him to the Society :

And whereas it has been agreed between the Society and the Church Council that the present members of the Society shall be members of the Corporation in respect of their membership of the Society and that it shall be optional to all members of the Society to become also ordinary members of the Corporation or not as they may elect and that whether they continue in or change their present spheres of duty and that it shall be optional to all other bishops and clergy of the Church except as hereinafter provided to become ordinary members of the Corporation :

And whereas it has been agreed between the Society and the Church Council that in the case of all bishops and clergy receiving part of their incomes from the Church Council and becoming ordinary members of the Corporation their contributions to the Corporation if not punctually paid by them shall be paid for them by the Church Council in so far as their incomes derived from the Church Council are sufficient to meet the same and that the amount so paid for them shall be deducted by the Church Council from the part of their incomes payable to them by the Church Council :

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And whereas the Church Council has agreed on the commencement of this Order to pay to the Corporation the sum of 2,500l.: A.D. 1903.

And whereas it is expedient that effect should be given in this Order to the various matters so agreed between the Society and the Church Council:

And whereas certain funds have been from time to time entrusted to the Society or its committee of management office-bearers or trustees for special purposes not connected with the relief of the widows and children of its members which funds are administered by it in terms of the particular trusts on which it holds the same and certain funds have been from time to time deposited with the Society for special purposes not connected with the relief of the widows and children of its members all which funds are called in its rules and accounts "special funds":

And whereas the Church Council under its constitution has power to act as trustee of funds entrusted to its charge for special purposes and subject to special conditions and administers trust funds entrusted to its charge in terms of the trusts affecting the same:

And whereas it is expedient and has been agreed between the Society and the Church Council that the special funds of the Society shall on the commencement of this Order be transferred to the trustees of the Church Council and that the same shall thereupon be held by such trustees and their successors in office and administered by the Church Council on the same trusts and for the same purposes on and for which the same are held by the Society:

And whereas it is expedient that the other provisions contained in this Order and in the First Schedule hereto should be made:

And whereas the assets now constituting the general fund and the special funds of the Society embrace the assets set out in the Second and Third Schedules to this Order the values thereof as appearing in the accounts of the Society being also set out in the said schedules:

And whereas the assets representing the general fund and special funds respectively have become intermixed and it is expedient for the purposes of this Order that the same should be divided and that the assets contained in the Second Schedule should be declared to belong to the general fund and the assets contained in the Third Schedule should be declared to belong to the special funds:

And whereas by special resolution passed by the Society at a special general meeting thereof held on 14th October 1902 and

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A.D. 1903. confirmed at a special general meeting thereof held on 13th November 1902 the Society has approved of and consented to the draft of this Order subject to such additions alterations and variations as may be made thereon during the progress thereof:

And whereas the objects of this Order cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:—

Short title. 1. This Order may be cited as the Scottish Episcopal Clergy Widows' and Orphans' Fund Order 1903 and shall come into operation at the date of the passing of the Act confirming the same which date is herein referred to as "the commencement of this Order."

Interpretation. 2. In this Order and in the Schedules hereto unless there be something repugnant in the subject or context—

The expression "the Church" means the Episcopal Church in Scotland:

The expression "the Church Council" means the Representative Church Council of the Church formed in the year 1876:

The expression "the Society" means the Friendly Society formed under the Act of Parliament 33 Geo. III. c. 54. under the name of "the Scotch Episcopal Friendly Society" which was registered in the year 1793 by the justices of the peace of the county of Aberdeen and is referred to in the Register of Friendly Societies (Scotland) as No. 3 Aberdeenshire:

The expression "the rules of the Society" means the rules of the Society as revised amended and approved of at a special general meeting of the Society held on the 29th March 1894 and registered by the Registrar of Friendly Societies in Scotland on 17th April 1894:

The expression "the general fund" means the general fund raised and established by the Society and applied by the Society to the relief of the widows and children of the members of the Society:

The expression "special funds" means funds which have been entrusted to the Society or its committee of management

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office-bearers or trustees and are administered for purposes other than the relief of the widows and children of its members and all sums deposited with the Society for purposes not connected with the relief of such widows and children : A.D. 1903.

The expression "the Corporation" means the Corporation of the Scottish Episcopal Clergy Widows' and Orphans' Fund incorporated by this Order :

The expressions "Society members" or "Society member" mean members or a member of the Corporation who become or becomes such by virtue of this Order by reason of having been members or a member of the Society at the commencement of this Order :

The expressions "ordinary members" or "ordinary member" mean members or a member of the Corporation other than the Society members without prejudice to the right of a Society member to become also an ordinary member in terms of this Order :

The expressions "members" or "member" with or without the addition of the words "of the Corporation" include and apply to both Society members and ordinary members :

The expression "the directors" means the directors of the Corporation.

3. On the commencement of this Order and subject to the provisions thereof all bishops and clergy of the Church who may then or at any time thereafter by their own election or otherwise in terms of this Order become ordinary members and all the members of the Society at the commencement of this Order shall constitute the members of the Corporation and shall be and they are hereby incorporated by the name of "the Corporation of the Scottish Episcopal Clergy Widows' and Orphans' Fund" and by that name shall be a body corporate with perpetual succession and a common seal and may sue and be sued and may purchase acquire hold and dispose of lands and other property heritable and moveable for the purposes of this Order and shall have all the other privileges of a body corporate. Incorporation.

4. The property of the Corporation shall be applied to and for the purposes of this Order and for no other purpose. Application of property.

5. The assets set out in the Second Schedule to this Order shall from and after the commencement of this Order be deemed and taken for all purposes to be assets belonging to the general and special funds. Separation of assets of general and special funds.

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A.D. 1903. — fund and the assets set out in the Third Schedule to this Order shall in like manner be deemed and taken for all purposes to be assets belonging to the special funds.

Payment by Church Council. 6. As at the commencement of this Order the Church Council shall pay to the Corporation the sum of 2,500*l.* with interest thereon at the rate of 3½ per cent. per annum until payment.

Transfer to Corporation of general fund. 7. The following provisions shall have effect as at the commencement of this Order regarding the transfer to the Corporation of the general fund including inter alia the assets set out in the Second Schedule hereto viz. :—

(1) Any trustee or person in whom any stocks shares or securities registered in the books of any corporation or company and forming part of the general fund are at the commencement of this Order vested for and on behalf of the Society shall at the expense of the Corporation as soon as conveniently may be after the commencement of this Order transfer to the Corporation all such stocks shares and securities and all interests and rights therein and shall do and concur in doing at the like expense all acts and things necessary or proper for effectually vesting such stocks shares and securities interests and rights in the Corporation and until such transfer shall hold such stocks shares and securities interests and rights upon trust for the Corporation :

(2) Subject to payment of stamp-duty as provided in the immediately following section and except as provided in the immediately preceding subsection all property securities and assets heritable and moveable belonging to the general fund and all rights obligations claims and demands relative thereto including all arrears belonging to or held by or enforceable for the benefit of the Society shall by virtue of this Order ipso facto and without any conveyance or transfer other than this Order be deemed and taken to be validly transferred to and vested in the Corporation to the same effect as if particular dispositions or assignments of the same as the case may be had been granted in favour of the Corporation and this Order shall be and be deemed to be a valid title thereto and shall not be challengeable or open to objection on the ground that any of the properties or securities contained in the Second Schedule hereto are inaccurately insufficiently or

erroneously described therein so long as the Society was in truth entitled to or to the benefit of such property or security : A.D. 1903.

(3) Without prejudice to the immediately preceding subsection all trustees and other persons holding property for or under obligation to the Society shall be bound at the request and expense of the Corporation to make and do and concur in making and doing all deeds and acts for making up and completing a title in name of the Corporation or its assignees to the properties securities and others referred to in the said subsection and for the purpose of enabling the Corporation or its assignees if thought fit to complete a title to any part of the said properties securities and others by expediting and recording a notarial instrument or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such properties securities and others in favour of the Corporation :

(4) All moneys in the hands of any of the officials of the Society forming part of the general fund and all books titles and other instructions and vouchers of the property and assets forming part of the general fund in the hands of any of the officials of the Society or held for it by its trustees or others shall be handed over by the holders thereof to the Corporation and the receipt of the Corporation shall be a good and effectual receipt and acquittance to the holders of the same for the delivery thereof.

8. Within one month after the commencement of this Order or as soon thereafter as the Act confirming this Order is printed by the King's printers a copy of the Act shall be produced to the Commissioners of Inland Revenue and they shall thereupon fix and assess the amount that would have been payable for stamp duty if the transfer made by subsection (2) of the last preceding section of this Order had been made by deed in the case of all property which apart from such statutory authority requires to be transferred by deed The amount of stamp duty so fixed by the said Commissioners shall be paid to them within one month from the time the same is assessed and fixed and if not so paid the same shall be a debt due by the Corporation to His Majesty and be recoverable by the Commissioners of Inland Revenue from the Corporation with interest at the rate of five per cent. per annum during non-payment On the amount so fixed being paid to the Commissioners they shall

Payment of
stamp duty.

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A.D. 1903. — cause the copy of the Act so produced to them to be stamped with the amount of stamp duty so paid Upon their being satisfied that all stamp duty under this Order has been paid they shall cause the said copy of the Act to be impressed with an adjudication stamp.

Transfer of obligations of Society in relation to general fund.

9. As at the commencement of this Order all the obligations of the Society and all debts due by it relating to the general fund shall become obligations and debts of the Corporation and shall be a primary charge on the property of the Corporation and all liabilities of the Society and its trustees in relation to the general fund shall be extinguished and the Society and its trustees are hereby as at the commencement of this Order absolutely finally and for ever exonerated and discharged of their actings transactions intromissions and management and of all omissions if any in relation to or with the general fund without prejudice nevertheless to the operation and enforcement of the section of this Order of which the marginal note is "Transfer to Corporation of general fund."

Transfer of general legacies &c.

10. All legacies donations and gifts which by their terms may after the commencement of this Order vest in or become payable to the Society or any trustee or trustees or other person or persons for behoof of the Society or would have done so if the Society had not been dissolved as hereinafter provided and which would but for the transfer effected by this Order have become part of the general fund shall vest in and be payable to the Corporation which shall be entitled to give valid receipts and discharges therefor.

President and vice-president.

11. There shall be a president and a vice-president of the Corporation who shall be members of the Corporation or members of the Church Council and shall (except as regards the first president and vice-president) hold office until they shall die resign or become disqualified or be removed from office by resolution of a general meeting of the Corporation.

Management of Corporation by directors.

12. The affairs of the Corporation shall be under the management of fifteen directors nine of whom shall be members of the Corporation and shall be elected by the Corporation and six of whom shall be elected by the Church Council and be members thereof at the time of their election and need not be members of the Corporation.

First and future presidents and vice-presidents.

13. The Right Reverend James Butler Knill Kelly bishop of the diocese of Moray Ross and Caithness in the Church shall be the first president and the Right Reverend John Dowden bishop of the

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diocese of Edinburgh in the Church shall be the first vice-president of the Corporation They shall hold office till the ordinary general meeting of the Corporation to be held in the year 1904 when they shall retire and their places shall be filled by election by the Corporation Future presidents and vice-presidents shall be elected by the Corporation at a general meeting The first president and vice-president shall be eligible for re-election. A.D. 1903.

14. The first directors shall be the following persons The Very Reverend John Skinner Wilson dean of the diocese of Edinburgh in the Church the Very Reverend John Archibald dean of the diocese of Moray Ross and Caithness in the Church the Reverend William Leslie Low Largs canon of the cathedral of Argyll and the Isles in the Church the Reverend Arthur John Maclean Selkirk canon of said cathedral the Reverend James Myers Danson Aberdeen the Reverend George Low Folla Rule Rothie-Norman the Reverend Robert Cruickshank Aberdeen the Reverend Charles James Jenkins Edinburgh the Reverend James Taylor Floyd Farquhar Aberdeen all members of the Society—James Bruce Writer to the Signet Edinburgh John Paton Cumine advocate Aberdeen John Birrell Don Maulesden Brechin James Haldane chartered accountant Edinburgh Francis Norie Miller Cleeve Perth and William George Spens Edinburgh all members of the Church Council—the first nine of whom shall be held as having been elected by the Corporation and the remaining six of whom shall be held as having been elected by the Church Council The first meeting of directors shall be held on ten days' notice within one month after the commencement of this Order It shall be called by and its time and place shall be fixed by the director first named in this section whom failing by the director second named therein. First directors.

15. The nine first directors held as having been elected by the Corporation shall hold office till the ordinary general meeting of the Corporation to be held in the year 1904 At that meeting the said nine directors shall retire and their places shall be filled by election by the Corporation all the said directors being eligible for re-election The six first directors held as having been elected by the Church Council shall hold office till the annual meeting of the Church Council to be held in the year 1904 when they shall retire and their places shall be filled by election by the Church Council all of them being eligible for re-election. Retirement of first directors.

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- A.D. 1903. 16. The first directors shall have power to appoint with such remuneration as they may fix an interim treasurer and an interim secretary or an interim treasurer and secretary who may but need not be members or a member either of the Corporation or of the Church Council to hold office until the ordinary general meeting of the Corporation to be held in the year 1904.
- Interim secretary and treasurer.
- Secretary and treasurer. 17. The Corporation shall at the ordinary general meeting to be held in the year 1904 appoint a treasurer and a secretary or a treasurer and secretary with such remuneration as the Corporation may fix who may but need not be members or a member either of the Corporation or of the Church Council. In the event of the death resignation or removal from office of any treasurer or secretary or treasurer and secretary the Corporation shall at any ordinary general meeting in like manner appoint some other person or persons in his or their place or places.
- Byelaws and regulations. 18. The byelaws and regulations contained in the First Schedule to this Order shall be the byelaws and regulations of the Corporation until duly altered in virtue of the next following section.
- Power to alter byelaws and regulations. 19. The Corporation shall have power by special resolution from time to time to alter or rescind any of the byelaws and regulations contained in the First Schedule to this Order and to make and thereafter to alter or rescind new or further byelaws and regulations for managing regulating and administering the Corporation and the affairs thereof that is by resolution passed at a general meeting of the Corporation by a majority of three-fourths of those members present personally or by proxy and confirmed at another general meeting of the Corporation by a majority of those members so present provided that such special resolution shall be confirmed by the Church Council and shall not be repugnant to the laws of Scotland or inconsistent with the provisions or in excess of the powers of this Order.
- Securities and deeds. 20. Without prejudice to the operation of the section of this Order of which the marginal note is "Transfer to Corporation of general fund" the securities in which the property of the Corporation may be invested shall be taken in the corporate name of the Corporation and all deeds whether relating to heritable or moveable property or of whatever other nature shall be valid and effectual if signed by two directors and the secretary and sealed with the seal of the Corporation.

21. The following provisions shall have effect regarding Society membership and the annuities for widows and children of members of the Society who have died before the commencement of this Order and of Society members (namely) :—

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Provision for
widows and
children of
members of
Society.

(1) From the commencement of this Order the Corporation shall pay to the widows of members of the Society who have died before the commencement of this Order the annuities at present paid or payable to them by the Society subject to the provisions with regard to extinction or abatement on re-marriage contained in the rules of the Society and shall also pay to the children of such members the annuities now payable or which may become payable to them under such rules subject to and with the benefit of the provisions in the said rules with reference to the length of time if any for which the same may be drawn and subject also to any valid exercise of the father's power of nomination In future no deduction shall be made from any annuity under this subsection in respect of a member not having made contributions to the Society for thirty years as provided by the rules thereof The gross amount of whole annuity is permanently fixed at the rate now in force in the Society viz. 45% :

(2) The Corporation shall pay to the widows and children of the Society members on the death of such members annuities subject to the provisions of the rules of the Society as hereinafter modified of 45% that is one sum of that amount per annum in the case of each Society member which annuities shall not have any deduction made therefrom in respect of a member not having made contributions to the Society for thirty years as provided by the rules thereof but shall in the case of children be subject to and have the benefit of the provisions in the said rules with reference to the length of time if any for which the same may be drawn and subject also to the father's power of nomination The annuities under this subsection shall be in addition to annuities to which such widows or children may become entitled by reason of such members being also ordinary members :

(3) In the event of any Society member after the commencement of this Order being sentenced to deprivation or degradation under the canons of the Church or after such date abandoning the service of the Church and betaking himself to any worldly business or forsaking the communion

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of the Church he shall forfeit his Society membership of the Corporation and his widow and children shall have no claim to an annuity in respect of his Society membership of the Corporation and he shall have no claim for repayment of the payments made by him to the Society or to the Corporation in respect of his Society membership or any part thereof but after his death the directors shall either make payment to his widow or children or widow and children of a sum equal to the surrender value (as at the date of forfeiture) of the forfeited benefits as such surrender value may be fixed by the valuer appointed under the section of this Order of which the marginal note is "Quinquennial investigation" whom failing by such Fellow of the Faculty of Actuaries in Scotland as the directors may appoint and in the event of the said beneficiaries being more than one in number the directors shall pay the said sum to the whole of them or to any one or more of them to the exclusion of the other or others in such proportions as the directors may in the circumstances think proper or in the option of the directors they shall make payment of the said sum to a trustee or trustees to be appointed by them on behalf of such widow or children or widow and children and shall settle the trusts thereof and particularly the interests of the beneficiaries inter se and shall insert effectual provisions for protecting these interests to the like effect as annuities are protected under the section of this Order of which the marginal note is "Annuities alimentary" Appointment to a chair or lectureship in any Scottish university shall not infer such forfeiture of membership or affect the rights of the widow and children of the member so appointed:

- (4) In the event of any Society member after the commencement of this Order leaving Scotland to exercise his ministry in any Church in communion with the Church he shall not thereby be held as having forfeited his membership and his widow and children shall retain their full claim to an annuity on his death but the said member shall not be entitled to repayment on his leaving Scotland of the payments that may have been made by him to the Society or to the Corporation in respect of his Society membership or any part thereof Provided that in the event of such member being sentenced to deprivation or degradation under

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the canons of the Church in which he is so exercising his ministry or if he abandons the service of the Church in which he is so serving and betakes himself to any worldly business or forsakes the communion of the Church in which he is so serving he shall forfeit his Society membership of the Corporation and his widow and children shall have no claim to an annuity in respect thereof nor he himself to repayment of any of the payments made by him but after his death the directors shall either make payment to his widow or children or widow and children of a sum equal to the surrender value (as at the date of forfeiture) of the forfeited benefits as such surrender value may be fixed as provided in the immediately preceding subsection of this section and that to one or more of the said beneficiaries and in such proportions as the directors may think proper or in the option of the directors they shall make payment of the said sum to a trustee or trustees on behalf of such beneficiaries and shall settle the trusts thereof all as provided in the said subsection :

- (5) All annuities to widows and children of members of the Society who have died before the commencement of this Order and of Society members (other than annuities to which they may become entitled by reason of such members being also ordinary members) shall form preferable claims on the property and assets of the Corporation over all other beneficial rights or claims against the Corporation :
- (6) The Society members shall not in respect of the above annuities to their widows and children (other than annuities to which they may become entitled by reason of such members also becoming ordinary members) be liable to pay any future contributions to the Corporation except that subject to the exemption hereinafter provided in the event of marriage to a widow in receipt of an annuity from the Corporation they shall be bound to pay to the Corporation the fines on marriage or re-marriage and the age equalisation taxes exigible from members of the Society under the rules thereof but any arrears due on the commencement of this Order by any members of the Society of their past contributions thereto shall be payable by such members with interest as provided by the rules of the Society and in the event of such arrears and interest or of the taxes

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aforesaid with interest thereon at five per cent. per annum from their due date not being paid by such members the same shall form burdens upon and be deductible from the above annuities to their widows or children.

Contributions of ordinary members.

22. Excepting as after provided with reference to entrance fee and age tax in the case of bishops and clergy serving in the Church at the commencement of this Order and electing to join the Corporation within three months after the commencement of this Order and excepting also as after provided with reference to clergy serving in foreign mission fields each bishop and clergyman shall on electing to join or becoming an ordinary member of the Corporation pay or become liable to pay—

- (1) An entrance fee of 10*l.* :
- (2) An age tax of 1*l.* 1*s.* for each complete year the entrant is above thirty years of age at the date of entry On his thirty-first birthday an entrant shall be taken to be one complete year over thirty years of age :
- (3) An equalising marriage tax payable at marriage or on entry if the member is already married for each year the age of the wife is less than the age of the member beyond the first five years (the age of the wife to be taken as at her last birthday and the age of the husband as at his next birthday unless the birthday of either coincide with the date of entry or marriage in which case that birthday shall be taken) as follows :—

				£	s.	d.
If member at entry or marriage is not over 30				1	0	0
If member at entry or marriage is—						
Over 30 but not over 35	-	-	-	1	6	0
„ 35 „ 40	-	-	-	1	12	0
„ 40 „ 45	-	-	-	1	18	0
„ 45 „ 50	-	-	-	2	4	0
„ 50 „ 55	-	-	-	2	10	0
„ 55 „ 60	-	-	-	2	16	0
„ 60 „ 65	-	-	-	3	2	0
„ 65 „ 70	-	-	-	3	8	0
„ 70 „ 75	-	-	-	3	14	0
„ 75 - -	-	-	-	4	0	0

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(4) An annual contribution of 5*l.* beginning the first payment thereof at the date of entry and the last being due on the anniversary of that date last preceding death or other termination of membership : A.D. 1903.

(5) A tax on re-marriage of 10*l.* in addition to the equalising marriage tax given above.

23. In the event of a member marrying a widow who at the time of such marriage shall be in receipt of an annuity from the Corporation no marriage fine or re-marriage tax and no age equalisation tax or equalising marriage tax shall be payable in respect of such marriage. Member marrying widow of member.

24. The directors shall have power to allow any member of the Corporation to make payment of the entrance fee age tax and any of the payments falling to be made by him under this Order other than the annual contributions by five yearly instalments with interest added at five per cent. per annum on a written request being made to them by such member provision however being always made to the satisfaction of the directors for the ultimate payment of the whole amount of such sums with interest. Powers of directors to allow payments by instalments.

25. Any of the provisions of the three immediately preceding sections may from time to time be altered by the members by special resolution passed and confirmed according to the provisions of the section of this Order of which the marginal note is "Power to alter byelaws and regulations." Power to alter amount and payment of contributions.

26. In the case of all bishops and clergy serving in the Church at the commencement of this Order who by letter signify to the secretary of the Church Council that they elect to join the Corporation as ordinary members within three months after the commencement of this Order no entrance fee or age tax shall be payable. Exemption from entrance fee and age tax.

27. It shall be optional to all bishops and clergy who at the commencement of this Order are members of the Society and also except as hereinafter provided to all other bishops and clergy serving in the Church at the commencement of this Order or coming to serve in the Church after that date to become ordinary members of the Corporation or not as they may elect but all such bishops and clergy shall on conforming to the provisions of this Order and the byelaws and regulations affecting the Corporation in force for the time being be entitled to become ordinary members of the Corporation without prejudice in the case of Society members to their continued Society membership. Entry in general case optional.

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' and Orphans' Fund Order Confirmation Act, 1903.* [3 EDW. 7.]

A.D. 1903.

Implied entry of existing clergy.

28. In the event of a clergyman not being a member of the Society holding at the commencement of this Order any home mission charge in the Church recognised by the Church Council as an independent home mission charge and afterwards accepting a charge in the Church recognised by the Church Council as an equal dividend charge he shall on entering thereon be deemed to have become an ordinary member of the Corporation and in the case of a clergyman not being a member of the Society holding such an equal dividend charge in the Church at the said date and afterwards accepting another equal dividend charge he shall be deemed to have become an ordinary member of the Corporation if the income of the new charge be greater than that of the charge previously held by him by the amount of the annual contribution for which he would become liable to the Corporation but if in the opinion of the directors the income of the new charge be not greater than that of the former charge by the said amount he shall not be deemed to have become a member unless he shall elect to join the Corporation.

Implied entry of future clergy.

29. In the case of all bishops and clergy coming to serve in the Church after the commencement of this Order and holding appointments which give right to participate in the Clergy Sustentation Fund or as clergy of independent mission charges in the Home Mission Fund of the Church Council all such bishops and clergy under the exceptions after mentioned shall as at the date of entering on their appointments be deemed to have become ordinary members of the Corporation. But no bishop or clergyman over fifty-five years of age coming to serve in the Church after the commencement of this Order shall be held to have become a member of the Corporation unless he intimates his wish to join the same and no clergyman who may come to take charge of an independent mission shall be held to have become a member of the Corporation until the lapse of three years after his appointment unless he sooner intimates his wish to join the same.

Payment of contributions by Church Council.

30. In the case of all bishops and clergy being members of the Corporation and participating either in the Clergy Sustentation Fund of the Church Council or as clergy of independent mission charges in the Home Mission Fund of the Church Council or in grants from the Aged and Infirm Clergy Fund of the Church Council or receiving any part of their stipend from funds administered by the Church Council who do not themselves make payment to the Corporation of the fines taxes and contributions due

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]
and Orphans' Fund Order Confirmation Act, 1903.*

by them in respect of their membership of the Corporation such payments with interest at five per cent. per annum thereon from their due date shall be made for them by the Treasurer of the Church Council out of the sums otherwise payable to them from the said Clergy Sustentation Fund Home Mission Fund Aged and Infirm Clergy Fund or other fund respectively in so far as such sums are sufficient to meet such fines taxes and contributions which payments shall be held as payments to such bishops and clergy on account of the sums otherwise receivable by them and the directors shall to the extent aforesaid be entitled to recover all such payments from the Church Council accordingly.

A.D. 1903.

31. In the case of clergy of the Church who have gone out or may go out to serve in its foreign mission fields the directors may make special arrangements with them and with the Board of Foreign Missions as to (1) whether such clergy shall be allowed to join the Corporation if they have not then already done so (2) the amount of the extra payments if any to be made by them as to both of which matters the decision of the directors shall be final and (3) how the ordinary and extra payments are to be provided and made.

Clergy serving in foreign mission fields

32. In cases in which bishops or clergy have previous to the commencement of this Order made provision for their widows and children by means of life assurance and may find it difficult both to maintain the assurance and also to defray their payments to the Corporation the directors may take over on behalf of the Corporation the policies of assurance of such members on such terms as may be agreed upon between the directors and the member and may surrender the same or pay the premiums necessary to keep the same in force or the directors may free the bishops or clergy holding such assurances from becoming members of the Corporation if and so long as they are satisfied that such policies are being duly maintained and that provision has been made that the proceeds thereof shall be primarily applied as a provision for the widows and children of the holders of the policies.

Provision for widows and children by life assurance.

33. The benefits to be granted to the ordinary members of the Corporation shall consist of an annuity of 27*l.* or such other sum as may be fixed by the Corporation at the next ordinary general meeting after each quinquennial examination of the affairs of the Corporation which annuity shall be paid by the Corporation after the death of the member to his widow during her life or until her re-marriage or in the event of there being no widow or of there

Benefits to widows and children of ordinary members.

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' [3 EDW. 7.]
and Orphans' Fund Order Confirmation Act, 1903.*

A.D. 1903. being a widow and of her death or re-marriage to his minor child or minor children so long as any remain in minority and being daughters are unmarried.

Power to
nominate
beneficiaries.

34. Subject to the preferential right of the widow if any until death or re-marriage it shall be competent for any ordinary member of the Corporation by probative writing inter vivos or mortis causa to nominate the minor child or children who shall be entitled to receive and the person or persons to receive on behalf of such child or children the annuity payable on his death and to delegate such powers of nomination to others who shall similarly be entitled to exercise the power by probative writing inter vivos or mortis causa and the said nomination shall be established by the claimant or claimants to the satisfaction of the directors before any payment is made under it and failing such nomination or in so far as it may not apply the annuity shall be divided equally among the minor children from time to time surviving or be paid wholly to or for the only surviving minor child Nothing in this section shall authorise payment of the benefit to a married daughter.

Apportion-
ment of
annuities.

35. The above annuity shall be apportionable that is to say the first payment shall be made at the first term of Whitsunday or Martinmas whichever may first happen after the death of the member and the amount then payable shall be the proportion for the period between the member's death and the said term and in the same way the last payment of the annuity shall be for the period from the last termly payment to the death or re-marriage of the widow or the death majority or in the case of daughters marriage of the last or only child entitled to the annuity In like manner the annuity shall be apportionable as among the different beneficiaries thereof inter se.

Contribu-
tions in
arrear.

36. Interest at five per cent. per annum shall be charged upon all contributions taxes or other payments in arrear and in the case of any member whose contributions taxes or other payments may not be in fact fully recoverable from the Church Council being in arrear for a longer period than two years such member may after three months' notice has been given to him by the treasurer of the Corporation of his being in arrear as aforesaid be struck off the roll of membership by minute of the directors and in such event his widow and children shall have no claim to any benefits from the Corporation and he shall have no claim to repayment of the payments made by him or any part thereof but after his death the directors shall have power ex gratia either to make payment to his

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]*
and Orphans' Fund Order Confirmation Act, 1903.

widow or minor children or widow and minor children of a sum not exceeding the surrender value (as at the date of his beginning to be in arrear as aforesaid) of the forfeited benefits as such surrender value may be fixed as provided in subsection three of the section of this Order of which the marginal note is "Provision for widows and children of members of Society" and that to one or more of the said beneficiaries and in such proportions as the directors may think proper or in the option of the directors to make payment of the said sum to a trustee or trustees on behalf of such beneficiaries and to settle the trusts thereof all as provided in the said subsection. In the event of any member dying in arrear and such arrears and interest thereon not being recoverable from any sum falling to be paid to him by the Church Council or not being otherwise paid up the same and interest thereon shall be deducted from the annuity or annuities payable to his widow or children and that at such times and in such instalments as the directors may determine. A Society member shall not as such be liable to be struck off on account of arrears due by him as an ordinary member.

A.D. 1903.
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37. Any ordinary member who shall be sentenced to deprivation or degradation under the canons of the Church or who shall forsake its communion shall be removed from the roll of members and forfeit all benefits for his wife and children as at the date of such sentence or desertion as certified by the bishop of the diocese and he shall have no claim to repayment of the payments made by him or any part thereof but after his death the directors shall either make payment to his widow or minor children or widow and minor children of a sum equal to the surrender value (as at the date of forfeiture) of the forfeited benefits as such surrender value may be fixed as provided in subsection three of the section of this Order of which the marginal note is "Provision for widows and children of members of Society" and that to one or more of the said beneficiaries and in such proportions as the directors may think proper or in the option of the directors they shall make payment of the said sum to a trustee or trustees on behalf of such beneficiaries and shall settle the trusts thereof all as provided in the said subsection.

Forfeiture.

38. If a member demits his office or cure and ceases to reside in Scotland he may if he so desires surrender the benefits to which his wife and children might become entitled and on so doing he shall be paid by the Corporation such part of his contributions to the Corporation and such interest thereon as the directors acting with the advice of an actuary to be named by them shall find to be

Surrender.

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' [3 Edw. 7.]*
and Orphans' Fund Order Confirmation Act, 1903.

A.D. 1903. — equitable but nothing contained in this Order shall be held to require or imply that any member shall forfeit or be required to surrender any benefit by reason only of his leaving Scotland and undertaking duty in a Church in communion with the Church if he continues to make the stipulated payments.

Restoration. 39. A member whose name has been removed from the roll of members whether as an ordinary member or a Society member or both either through forfeiture or surrender if he shall again be received into the service of the Church shall be entitled to be restored to membership as an ordinary member or a Society member or both as the case may be on repaying in case of surrender the amount paid to him at such surrender with interest at $3\frac{1}{2}$ per cent. per annum compounded annually and in any case paying all arrears if any which were at the time his name was removed from the roll due by him on account of the membership or memberships to which he elects to be restored and all annual contributions marriage taxes and other payments to which he would have become liable if he had remained during the intervening years in the membership or memberships to which he elects to be restored with interest at 5 per cent. per annum on all such arrears contributions taxes and payments On application the directors may permit payment of the sums aforesaid to be extended over not more than five years and to be made by annual instalments or otherwise as the directors may determine with interest at 5 per cent. per annum from the date when the full amount fell due but in the event of such arrears not being fully paid up before the death of the member the balance remaining due shall fall to be deducted from any annuity or annuities payable to his widow or children at such times and in such instalments as the directors may determine.

Annuities of alimentary. 40. The annuities payable to widows and children from the Corporation shall be alimentary and shall not be assignable or transferable by them nor capable of being anticipated or discharged nor liable for or subject to their debts or deeds nor subject to the diligence of their creditors but shall be paid to the widows and the legal guardians or persons nominated on behalf of the children respectively entitled thereto for the sole and exclusive use and benefit of such widows and children.

Payment of annuities. 41. All annuities shall be payable half-yearly at Whitsunday and Martinmas on personal application at the office of the treasurer of the Corporation or on transmission to the treasurer of a certificate under the hand of a justice of the peace minister of religion doctor of medicine or solicitor that the person or persons entitled to the

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]
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annuity was or were in life within ten days prior to the day of payment of the same and in any case on production of such evidence of identity and title as the directors may require. A.D. 1903.

42. All expenses relating to or incurred in the management or administration of the Corporation or otherwise in carrying the provisions of this Order into effect shall be paid by the Corporation. Cost of management &c. to be paid by Corporation.

43. The members at any general meeting shall have power out of the assets of the Corporation to provide a pension to any secretary treasurer officer clerk or servant of the Society or the Corporation and to fix the amount thereof. Pension to officers.

44. The members at any general meeting shall have power to authorise the directors to enter into arrangements for holding diocesan or other assets devoted to objects or purposes of the same or similar nature as those of the Corporation and for administering the same provided the Church Council sanctions such arrangements. Power to administer diocesan or other trust funds.

45. In the event of any dispute arising between the Corporation and any member or between the Corporation and any beneficiary the same shall be referred to the decision of the dean of the Faculty of Advocates for the time being or an advocate to be nominated by him whose decision shall be final and binding on both parties. Arbitration.

46. In lieu of the provisions of section 3 of the Life Assurance Companies Act 1870 and of section 1 of the Life Assurance Companies Act 1871 and of section 1 of the Life Assurance Companies Act 1872 in so far as these Acts may be applicable to the Corporation the directors shall within three months after the commencement of this Order deposit the sum of two thousand five hundred pounds with the accountant of the Court of Session to be invested by him in one or more of the investments or securities in or upon which trustees are by the Trusts (Scotland) Acts 1861 to 1898 and the Colonial Stock Act 1900 authorised to invest trust funds the directors choosing the particular investments or securities and receiving the income therefrom and the accountant of the Court of Session shall return such deposit to the directors so soon as evidence is submitted to him that the assets of the Corporation inclusive of the said deposit amount in value to the sum of forty thousand pounds And for the purposes of this Order the expression "the accountant of the Court of Session" shall in the provisions hereinbefore in this section referred to be read instead of and be held to be substituted for the expression "the Accountant-General of the Court of Chancery." Deposit with accountant of Court of Session.

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' and Orphans' Fund Order Confirmation Act, 1903.* [3 Edw. 7.]

A.D. 1903.
Indemnity.

47. No director or trustee of the Corporation shall be liable for the acts receipts neglects defaults or frauds of any other director or trustee or of any agent officer clerk or servant or for joining in any receipts or other act for conformity or for any loss or expense happening to the Corporation through the insufficiency or deficiency of title to any property acquired by the order of the directors for or on behalf of the Corporation or for the depreciation insufficiency or deficiency of any investment or security in or upon which any of the assets of the Corporation shall be invested or of the title thereto or for any loss or damage arising from the bankruptcy insolvency or fraud of any person with whom any moneys securities or effects shall have been deposited or for any other loss damage or misfortune whatever which shall happen in the execution or intended execution of the duties of his office or in relation thereto unless the same happen through his own fraud.

Transfer of
special funds
to trustees
of Church
Council.

48. As at the commencement of this Order all the property securities and assets forming the special funds held by the Society and its committee of management office bearers or trustees or deposited with it for special purposes including inter alia the assets set out in the Third Schedule to this Order and all rights obligations claims and demands relative thereto and all arrears shall by virtue of this Order ipso facto be held as transferred to and vested in the said Right Reverend John Dowden bishop of the diocese of Edinburgh in the Church the Right Honourable John Blair Balfour Baron Kinross of Glasclune Lord Justice-General of Scotland John Ramsay Anderson Writer to the Signet Edinburgh the said James Haldane John Alexander Spens writer Glasgow Major-General Sir Henry Trotter of Mortonhall Midlothian and the said John Birrell Don as trustees of the Church Council and their successors in office as such trustees With reference to such transfer and the title of the trustees of the Church Council to the property securities and assets thereby transferred the sections of this Order the marginal notes of which are "Transfer to Corporation of general fund" and "Payment of stamp duty" shall apply mutatis mutandis.

Property
vested in
trustees of
Church
Council to
vest in their
successors
in office.

49. All titles completed or that may be completed in the persons of the said trustees of the Church Council or in the persons of their predecessors or successors in office to any property security or asset falling to be held or administered by the trustees of the Church Council for general purposes or for any special purpose including the title conferred by this Order upon the said trustees

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]
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to the special funds hereby transferred if and when the same shall be so completed shall not only vest the trustees in office at the commencement of this Order or the trustees in office at the date when such title may be completed as the case may be but shall also effectually vest their successors in office for the time being chosen and appointed by the Church Council with a feudalised or otherwise duly completed title and that without any conveyance or transfer and without any infestment recording intimation or other completion of title or procedure. A.D. 1903.

50. The special funds and the property and assets forming the same shall be held by the said trustees of the Church Council and their successors in office and shall be administered by the Church Council on the same trusts and for the same purposes on and for which the same were held by the Society or its committee of management office bearers or trustees. All obligations of the Society or of its committee of management office bearers or trustees in relation to the special funds shall become obligations of the Church Council and its trustees and all liabilities of the Society its committee of management office bearers or trustees in relation thereto shall be extinguished. The obligations hereby transmitted against the trustees of the Church Council shall affect them only as trustees and not personally or individually and further the same shall to all effects be limited to the true value as ultimately ascertained of the assets set out in the Third Schedule hereto. The Society its committee of management office bearers and trustees are hereby as at the commencement of this Order absolutely finally and for ever exonerated and discharged of their actings transactions intromissions and management and of all omissions if any in relation to or with the special funds without prejudice nevertheless to the operation and enforcement of the section of this Order the marginal note of which is "Transfer of special funds to trustees of Church Council" and the sections therein referred to. Provided that nothing in this Order contained shall operate to prevent the Church Council or its trustees from repaying to the depositors or other persons entitled thereto any funds deposited with the Society for custody or temporary administration or to prejudice or affect the right of such depositors or other persons to require payment thereof. Transfer of obligations of Society in relation to special funds.

51. All legacies donations and gifts for special purposes other than the relief of the widows and children of its members which by their terms may after the commencement of this Order vest in or Transfer of special legacies &c.

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' [3 EDW. 7.]
and Orphans' Fund Order Confirmation Act, 1903.*

A.D. 1903. — become payable to the Society or any trustee or trustees or other person or persons for behoof of the Society or would have done so had the Society not been dissolved shall for such special purposes vest in and be payable to the said Right Reverend John Dowden the Right Honourable John Blair Balfour Baron Kinross of Glasclune John Ramsay Anderson James Haldane John Alexander Spens Major-General Sir Henry Trotter and John Birrell Don as trustees appointed by the Church Council and their successors in office and they shall be entitled to give valid receipts and discharges therefor.

Dissolution of Society. 52. On the commencement of this Order the Society shall be and is hereby dissolved and on production of a copy of the Act confirming this Order to the Assistant Registrar of Friendly Societies for Scotland he shall delete its name from the list of friendly societies Notwithstanding anything in this Order no admission or restoration to membership of the Society made or which but for this enactment would have become effective after the first day of June 1902 shall unless the same be confirmed by the directors which they shall have power to do or not to do as they in each case think fit without reason assigned have any effect except only to entitle the person so purported to be admitted or restored or his representatives to obtain return of any sums paid by him on or since such admission or restoration with interest at the rate of $3\frac{1}{2}$ per cent. per annum if the directors shall refuse to confirm such admission or restoration.

Quinquennial investigation. 53. At 31st December 1904 and at 31st December in every fifth year thereafter the assets and liabilities of the Corporation including the estimated risks and contributions shall in the interests of the members and beneficiaries be valued by a valuer to be named by the directors The valuer shall be a fellow of the Faculty of Actuaries in Scotland In his report there shall be presented a vidimus of the assets and obligations of the Corporation with a statement of his opinion whether for the quinquennium then beginning any alteration should be made on the rate of annuity or contributions This report shall be laid by the directors before the members at the first ordinary general meeting thereafter at which meeting the members shall fix the rate of annuity for the quinquennium then ensuing Copies of the said report shall be printed and sent by prepaid post to each member at least fourteen days before the meeting and a copy thereof shall also be sent by prepaid post to the secretary of the Church Council and shall be laid by

him before the first meeting of the Church Council after receipt A.D. 1903.
thereof.

54. All costs charges and expenses of or incident to the Costs of
Order.
preparing obtaining and confirming of this Order or otherwise in
relation thereto shall be paid by the Church Council.

THE FIRST SCHEDULE.

BYELAWS AND REGULATIONS OF THE CORPORATION.

1. The directors elected by the Corporation or by the Church Council respectively shall unless they previously die resign or become disqualified or be removed from office by resolution of the Corporation at a general meeting continue to be directors until others are elected in their stead. Directors to
remain in office
till others
elected.

2. At every ordinary general meeting of the Corporation after the meeting in 1904 three of the directors elected by the members shall retire and their places shall be filled by three members to be elected at such meeting Two of such retiring directors shall be eligible for re-election but the third shall not be eligible for re-election until the expiry of one year from the date of his retirement from office. Rotation of
members'
directors.

3. At every annual meeting of the Church Council after the meeting in 1904 two of the directors elected by the Church Council shall retire and their places shall be filled by two members of the Church Council to be elected at such meeting One of such retiring directors shall be eligible for re-election but the other shall not be eligible for re-election until the next annual meeting. Rotation of
Church Coun-
cil directors.

4. The directors to retire at such meetings shall be those who have been longest in office since their last election and subject to this provision the directors to retire at the ordinary general meeting of the Corporation and at the annual meeting of the Church Council in the years 1905 and 1906 shall be settled by the directors by lot or otherwise Retiring directors shall by lot or otherwise among themselves determine which of them shall be eligible for re-election. Order of retire-
ment.

5. In the event of any vacancy occurring in the presidentship or vice-presidentship the same until a new president or vice-president is elected by the Corporation may be filled up by the directors and in the event of any casual vacancy occurring in the directorate (including the first directors) the remaining directors shall fill up the same from the members of the Corporation or the Church Council according to the representative membership of the director whose office has been vacated and any person so appointed shall continue in office as a director so long as the person in whose place he has been appointed would have been entitled to hold office. Casual
vacancies.

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' and Orphans' Fund Order Confirmation Act, 1903.* [3 EDW. 7.]

- A.D. 1903. 6. The directors shall provide a seal for the Corporation and make such regulations as they shall think fit for the use and custody thereof.
- Seal. —
- Meetings of directors. 7. The directors shall meet at such times and places and upon such notice as they may from time to time appoint and five shall be a quorum and any meeting of directors at which a quorum is present shall be competent to exercise all or any of the authorities powers and discretions exerciseable by the directors. At the first meeting of the first directors and at the first meeting of the directors in each year after the ordinary general meeting of the Corporation or the annual meeting of the Church Council for that year whichever shall last happen to be held the directors shall elect one of their number to be chairman and another to be vice-chairman of directors for the year then ensuing or until their successors are appointed. The chairman of the directors shall be chairman of each meeting of directors and if he be absent from any meeting the vice-chairman if present shall be chairman and if he be absent the meeting shall choose its own chairman. All questions arising at any meeting of directors shall be determined by a majority of the directors present and voting the chairman for the time being having in case of an equality of votes a casting as well as a deliberative vote.
- Powers of directors. 8. The directors in addition to any other powers exerciseable by them under this Order and this Schedule shall have and may execute the following powers (viz.) :—
- (1) To appoint committees and to delegate to such committees all or any of the powers which the directors themselves possess and to discharge such committees which committees may consist of one or more directors :
 - (2) To invest the funds and realise and vary the investments of the Corporation in such manner subject to the provisions of this Order as they shall from time to time think proper :
 - (3) To raise or borrow any sum or sums of money for the purposes of the Corporation and to grant security therefor over the assets of the Corporation :
 - (4) To sue or defend actions in name of the Corporation and to compromise or submit and refer claims by or against the Corporation :
 - (5) Subject to the provisions of the section of this Order of which the marginal note is "Secretary and treasurer" to appoint and at their discretion to suspend and remove such law agents officers clerks and servants as they may from time to time think fit and to fix their salaries and emoluments and determine their powers and duties also to determine the powers and duties of treasurers and secretaries to require security from treasurers secretaries or other officers to such amount as they see fit to suspend and remove treasurers and secretaries and to appoint interim treasurers and secretaries and to fix their salaries :

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]
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(6) Generally without prejudice because of the foregoing particulars to manage the property and affairs of the Corporation. A.D. 1903.

9. Any person or firm may be appointed or employed as treasurer secretary law agent auditor valuer or in any other capacity and shall be entitled to the usual remuneration notwithstanding that he or his partner or any partner of such firm is a director. Remuneration
of officials
though
directors.

10. The assets of the Corporation shall be invested in the purchase of or in loans for any fixed period or indefinitely on the security of such of the following securities as the directors shall from time to time direct (namely):— Investments.

(1) Investments and securities authorised by the Trusts (Scotland) Acts 1861 to 1898 and the Colonial Stock Act 1900 or which may hereafter be authorised by statute for trust funds :

(2) Heritable property in Scotland :

(3) Rentcharges or any kind of rents or income arising out of or charged on lands in the United Kingdom :

(4) Any interest in the parliamentary stocks or public funds of the United Kingdom :

(5) Any interest in lands or other heritable property in the United Kingdom :

(6) Mortgage charge or security of the rates tolls or dues of any municipality council district parish or place in the United Kingdom or upon any security on which any local authority corporation commissioners or other public body in the United Kingdom may by any Act of Parliament be authorised to borrow or raise money :

(7) Debentures deposit receipts debenture stock mortgages or other securities or obligations of any local authority corporation commissioners or other public body municipal county district parochial general or otherwise in the United Kingdom or debentures deposit receipts debenture stock mortgages or other securities or obligations or the guaranteed or preference stock or preference shares of any company incorporated or registered either under Royal Charter Act of Parliament or the Companies Acts or the legislation of any colony or dependency of the United Kingdom or otherwise paying at the time of investment a dividend on its ordinary stock or shares whether such company be incorporated or registered in the United Kingdom or in any colony or dependency of the United Kingdom and whether it be domiciled or carry on business or trade in the United Kingdom or in any colony or dependency or in foreign countries :

(8) Public or Government or municipal stocks funds or securities of India or of any colony or dependency of the United Kingdom or any interest in such stocks funds or securities :

(9) Stock or shares of Indian railways the dividends of which are guaranteed by the Indian Government and payable in sterling in Great Britain or on any interest in such stock or shares :

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- (10) Land or other real estate or any interest in land or other real estate in any colony or dependency of the United Kingdom :
- (11) Stock of any or all of the chartered banks of Scotland :
- (12) Any policy of life assurance of adequate value :
- (13) Any policy of life assurance although the amount of the loan may exceed the present value thereof provided in such case that the premium on such policy and the interest of the loan be collaterally secured by or upon any of the securities or investments above mentioned or personal security to the satisfaction of the directors :
- (14) Annuities whether in perpetuity or for life or for years and whether charged upon or arising out of any of the securities or investments above mentioned or any estate or interest in the same :
- (15) Vested reversionary contingent reversionary or other estate or interest with or without life assurance :

Provided always that the directors may retain any investment security or obligation in or upon which any of the assets of the general fund may at the commencement of this Order be invested.

Accounts.

11. True accounts shall be kept of the sums of money received and expended on behalf of the Corporation and of the assets credits liabilities and transactions of the Corporation and subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed by the directors such accounts shall be open to the inspection of the members.

Accounts to be laid before meeting.

12. At the ordinary general meeting in every year the directors shall lay before the members (firstly) a statement of accounts comprising a revenue account showing the income and expenditure of the Corporation from the time when the last preceding statement of accounts was made but in the case of the first statement of accounts from the closing date of the immediately previous statement of accounts of the Society and (secondly) a statement of the assets of the Corporation. Every such statement of accounts shall be certified by the auditor or auditors and shall be accompanied by a report by the directors on the affairs of the Corporation. Copies of all these documents shall be printed and sent by prepaid post to each member at least fourteen days before the meeting and a copy thereof shall also be sent by prepaid post to the secretary of the Church Council and shall be laid by him before the first meeting of the Church Council after receipt thereof.

Audit and auditors.

13. The accounts of the Corporation shall be examined in each year and the correctness thereof ascertained by an auditor. Auditors must be members of a Society of Accountants in Scotland incorporated by Royal Charter or Act of Parliament. The first auditor or auditors shall be appointed by the first directors and shall act until the ordinary general meeting in the year 1904. Subsequent auditors shall be appointed by the Corporation at the ordinary general meeting in each year and shall hold office for the year.

Remuneration of auditors.

14. The remuneration of the first auditors shall be fixed by the first directors and of subsequent auditors by the Corporation in general meeting.

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]*
and Orphans' Fund Order Confirmation Act, 1903.

15. Any auditor quitting office shall be eligible for re-election If any A.D. 1903.
casual vacancy occur in the office of auditor the directors shall forthwith fill Casual appoint-
up the same and the auditor so appointed shall hold office till the next ment of
ordinary general meeting. auditor.

16. There shall be convened at the time and in the manner hereinafter Ordinary
specified general meetings of the Corporation at which all the members shall meetings.
be entitled to be present and to act and vote An ordinary general meeting
shall be held in the month of May in the year 1904 and subsequent ordinary
general meetings shall be held once in each subsequent year at such times and
places as the directors may determine.

17. The directors may whenever they think fit and shall on the written Extraordinary
requisition of not less than twenty members convene a general meeting at meetings.
which only the business specified in the notice convening the meeting shall
be transacted All such meetings shall be called extraordinary general
meetings.

18. Not less than fourteen clear days' notice of a general meeting shall Notice of
be given to the members specifying the place day and hour of meeting and in meetings.
case of an extraordinary general meeting the general nature of the business of
such meeting.

19. The business of an ordinary general meeting shall be to receive the Business of
statements of accounts and of assets and the report of the directors on the ordinary
affairs of the Corporation to elect directors to appoint treasurers secretaries or meeting.
treasurers and secretaries and auditors and to fix their remuneration and to
transact any other business that may be mentioned in the notice convening
the meeting.

20. No business shall be transacted at any general meeting unless the Quorum at
quorum requisite be present at the commencement of the business and such meetings.
quorum shall be ascertained as follows If the members of the Corporation
do not exceed thirty a quorum shall be five and one shall be added to make a
quorum for every additional ten members but in no case shall more than
nine be required to form a quorum.

21. The chairman of a general meeting shall be the president or failing Chairman of
him the vice-president or failing them the chairman of the directors or failing meetings.
him one of the directors present.

22. Every question submitted to a meeting shall be decided in the Decisions at
first instance by a show of hands and in case of an equality of votes the meetings.
chairman shall if a member of the Corporation both on show of hands and at
the poll have a casting vote in addition to the vote to which he is entitled as
a member The president vice-president and directors though not members
of the Corporation shall be entitled to be present and to speak and preside at
all meetings of the Corporation but unless members they shall have no vote
either deliberative or casting and they shall not be reckoned towards a
quorum.

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' and Orphans' Fund Order Confirmation Act, 1903.* [3 EDW. 7.]

- A.D. 1903. 23. At any general meeting unless a poll is demanded by at least three members a declaration by the chairman that a resolution has been carried or lost and an entry to that effect in the minute book of the Corporation shall be conclusive evidence of the fact.
- Declaration by chairman of decisions.
- Poll. 24. If a poll is demanded as aforesaid it shall be taken in such manner and at such time and place as the chairman of the meeting directs.
- Adjournments. 25. The chairman of a general meeting may with the consent of the meeting adjourn the same from time to time and from place to place but no business shall be transacted at any adjourned meeting other than the business left unfinished at a meeting from which the adjournment took place.
- Votes of members. 26. At all general meetings every member shall be entitled to one vote. Votes may be given either personally or by proxy. The instrument appointing a proxy shall be in writing under the hand of the appointor. No person shall be appointed a proxy who is not a member of the Corporation.
- Proxy to be deposited with treasurer. 27. The instrument appointing a proxy shall be deposited at the office of the treasurer of the Corporation not less than twenty-four hours before the time of holding the meeting at which the person named in such instrument proposes to vote but no instrument appointing a proxy shall be valid after the expiration of twelve months from the date thereof.
- Notices. 28. A notice requiring to be given to any member or beneficiary may be given either personally or by sending it through the post prepaid and addressed to such member or beneficiary at his ordinary address. As regards those members or beneficiaries who have no address in the United Kingdom a notice posted up in the office of the treasurer of the Corporation shall be deemed to be well served on them at the expiration of twenty-four hours after it is so posted up. Any notice sent by post shall be deemed to have been served on the second day following that on which the envelope or wrapper containing the same is posted and in proving such service it shall be sufficient to prove that the envelope or wrapper containing the notice was properly addressed and put prepaid into the post office.
- Returns by members. 29. Each member of the Corporation shall on becoming a member and when required make a return to the secretary of the Corporation accompanied by such certificates as shall be required by the directors stating the following particulars so far as they apply to his case namely: The date of his birth, the date of his receiving holy orders or of being collated to a bishopric in the Church or receiving institution or appointment to a pastoral charge in the same, the name of his wife and the date of her birth, the name and date of birth of each child alive and the date of the birth and death of each child deceased. Each member of the Corporation shall also in January of each year make a return of any changes that may have occurred in his own status or in his family during the year immediately preceding. All returns shall be made on the forms to be from time to time issued by the directors.
- Notice and proof of deaths and marriages. 30. Certification of the death of a member shall be made to the secretary of the Corporation by sending to him (1) an extract entry of

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]
and Orphans' Fund Order Confirmation Act, 1903.*

death of such member from the register of deaths in which same is recorded and (2) a certificate under the hand of two members of the Corporation stating whether the member has left a widow child or children or both with the full names and full present addresses of such widow or child or children or a statutory declaration by the claimant or some person on her or his behalf containing the same information The acceptance of certification as above mentioned and consequent enrolment of an annuitant and payment of the annuity shall not preclude the directors from requiring at any future time the legal establishment of such claim The death or marriage of a widow or daughter and the death of a son in right of or who might come to be in right of an annuity shall be intimated to the secretary of the Corporation by sending to him an extract entry of such death or marriage.

A.D. 1903.

THE SECOND SCHEDULE.

ASSETS BELONGING TO AND FORMING PART OF GENERAL FUND.

I.—STOCKS AND SHARES.

	£	s.	d.	£	s.	d.
1. Millwall Dock Company—						
3,530 <i>l.</i> 5 per cent. debenture stock -	3,826	2	6			
2. Hammersmith and City Railway Com- pany—						
1,930 <i>l.</i> 5½ per cent. guaranteed stock -	£2,382	14	9			
35 10 <i>l.</i> 5 per cent shares	403	0	0			
				2,785	14	9
3. Perth Gas Annuities—						
1,206 <i>l.</i> 6¼ per cent. stock -	1,695	10	9			
4. West London Railway Company—						
70 20 <i>l.</i> 2 per cent. shares -	619	0	0			
				8,926	8	0

II.—SUPERIORITIES AND MID-SUPERIORITIES.

1. Properties in Market Street and Guild Street Aberdeen from which there is payable a feu duty of 357 <i>l.</i> 10 <i>s.</i> (subject to ground rents) the Society's title to which consists of disposition by William Frederick Ogg and another to the Society's trustees dated 7th and recorded in the Register of Sasines for the burgh of Aberdeen 15th November 1881 -	7,906	0	0			
Carry forward -	7,906	0	0	8,926	8	0
C				33		

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' [3 EDW. 7.]
and Orphans' Fund Order Confirmation Act, 1903.*

		£	s.	d.	£	s.	d.
A.D. 1903.	Brought forward	7,906	0	0	8,926	8	0
2.	Property at Banchory-Ternan from which there is payable a feu duty of 89 <i>l.</i> 18 <i>s.</i> (subject to over feu duty) the Society's title to which consists of disposition by John Forbes Watson to the Society's trustees dated 14th and recorded in the division of the General Register of Sasines for the county of Kincardine 20th December 1882	1,895	15	6			
3.	Estate of Stranduff in the county of Aberdeen from which there is payable a feu duty of 51 <i>l.</i> 11 <i>s.</i> 6 <i>d.</i> the Society's title to which consists of disposition by the trustees of Alexander Crombie to the Society's trustees dated 15th and 16th and recorded in the division of the General Register of Sasines for the county of Aberdeen 21st May 1878	1,186	4	6			
4.	Property at Barkmill Aberdeen from which there is payable a feu duty of 39 <i>l.</i> the Society's title to which consists of disposition by Charles Frederick Runcy with consent to the Society's trustees dated 15th May and recorded in the division of the General Register of Sasines for the county of Aberdeen 20th June 1882	897	0	0			
5.	Property in Skene Terrace Aberdeen from which there is payable a feu duty of 42 <i>l.</i> 13 <i>s.</i> 6 <i>d.</i> the Society's title to which consists of disposition by Alexander Crombie to the Society's trustees dated 9th and recorded in the Register of Sasines for the burgh of Aberdeen 20th May 1882	870	16	3			
6.	Properties in Gerrard Street and George Street Aberdeen from which there is payable a feu duty of 97 <i>l.</i> 7 <i>s.</i> 6 <i>d.</i> (subject to over feu duty) the Society's title to which consists of disposition by James Blackhall Keith to the Society's trustees dated 17th February and recorded in the Register of Sasines for the burgh of Aberdeen 5th March 1898	756	14	0			
	Carry forward	13,512	10	3	8,926	8	0

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]
and Orphans' Fund Order Confirmation Act, 1903.*

	£	s.	d.	£	s.	d.	A.D. 1903.
Brought forward -	13,512	10	3	8,926	8	0	—
7. Properties in North Broadford Street and George Street Aberdeen from which there is payable a feu duty of 34 <i>l.</i> 10 <i>s.</i> (subject to over feu duty) the Society's title to which consists of disposition by Thomas M'Bey to the Society's trustees dated 20th and recorded in the division of the General Register of Sasines for the county of Aberdeen 22nd May 1896	512	14	3				
8. Property in Union Grove Aberdeen from which there is payable a feu duty of 14 <i>l.</i> 14 <i>s.</i> the Society's title to which consists of disposition by Robert Harvey Urquhart with consent to the Society's trustees dated 7th December 1898 and recorded in the division of the General Register of Sasines for the county of Aberdeen 10th January 1899 -	479	1	6				
9. Property in Rubislaw Terrace Aberdeen from which there is payable a feu duty of 44 <i>l.</i> 8 <i>s.</i> 9 <i>d.</i> (subject to over feu duty) the Society's title to which consists of disposition by David Leith to the Society's trustees dated 11th and recorded in the division of the General Register of Sasines for the county of Aberdeen 15th November 1881 -	450	0	0				
10. Property in Richmond Street Aberdeen from which there is payable a feu duty of 14 <i>l.</i> 8 <i>s.</i> the Society's title to which consists of disposition by the trustees of William Stevenson to the Society's trustees dated 16th November and 24th December 1881 and recorded in the division of the General Register of Sasines for the county of Aberdeen 3rd January 1882 -	324	0	0				
11. Property in Rubislaw Terrace Aberdeen from which there is payable a feu duty of 51 <i>l.</i> (subject to over feu duty) the Society's title to which consists of disposition by Alexander Ellis and Robert Gordon Wilson trustees for Ellis and							
Carry forward -	15,278	6	0	8,926	8	0	
C 2				35			

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' [3 Edw. 7.]
and Orphans' Fund Order Confirmation Act, 1903.*

		£	s.	d.	£	s.	d.
A.D. 1903.	Brought forward	-	15,278	6 0	8,926	8 0	
	Wilson to the Society's trustees dated 13th and recorded in the division of the General Register of Sasines for the county of Aberdeen 15th November 1883	-	200	0 0			
					15 478	6 0	

III.—GROUND RENTS.

1. Annual ground rent of 159*l.* 3*s.* 8*d.* payable by the Police Commissioners of Aberdeen for ground at Kittybrewster in the county of Aberdeen the Society's title to which consists of (1) assignation by John Catto to Alexander Leslie the Society's treasurer dated 26th and recorded in the division of the General Register of Sasines for the county of Aberdeen 27th February 1877 and (2) assignation by Alexander Leslie to the Society's trustees dated 21st December 1878 and recorded in the said division of the General Register of Sasines 17th February 1879 - - - 3,757 6 11
2. Annual ground rents amounting to 127*l.* 6*s.* 6*d.* (subject to over ground rent) payable from properties in Princes Street and King Street Aberdeen (subject to over ground rents) the Society's title to which consists of disposition and assignation by George Cadenhead with consent to the Society's trustees dated 2nd 3rd 7th 9th 15th and 17th and recorded in the Register of Sasines for the burgh of Aberdeen 24th November 1883 - - - 2,000 0 0

5,757 6 11

IV.-- HERITABLE SECURITY.

Bond and disposition in security for 11,000*l.*
by the Honourable John Arbuthnot to
the trustees of James Scott secured over

Carry forward - - - 30,162 0 11

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]*
and Orphans' Fund Order Confirmation Act, 1903.

	£	s.	d.	£	s.	d.	A.D. 1903.
Brought forward -				30,162	0	11	—
the estate of Arbuthnot &c. in the county of Kincardine dated 3rd and recorded in the General Register of Sasines 8th January 1851 to which security the Society acquired right to the extent of 1,700 <i>l.</i> conform to assigna- tion by the factor and commissioner for William Charles Stewart and others to the Society's trustees dated 10th and 11th and recorded in the division of the General Register of Sasines for the county of Kincardine 13th November 1890 which security is appropriated to the general fund to the extent of -				1,471	5	0	
				<u>£31,633</u>	<u>5</u>	<u>11</u>	

THE THIRD SCHEDULE.

ASSETS APPROPRIATED TO REPRESENT SPECIAL FUNDS.

I.—DEBENTURES.

	£	s.	d.	£	s.	d.
Pittsburg (Pennsylvania) City— \$2,000 debentures—Browning Bursary Fund - - - - -				400	0	0

II.—HERITABLE SECURITIES.

1. Bond and disposition in security for 2,000 <i>l.</i> by David Sinclair to Thomas Clapperton secured over the estate of Altens in the county of Kincardine dated 15th and recorded in the division of the General Register of Sasines for the county of Kincardine 16th May 1879 to which the Society acquired right conform to assignation by Thomas Clapperton to the Society's trustees dated 7th and recorded in the said division of the General Register of Sasines 14th No- vember 1882 - - - - -	2,000	0	0			
Carry forward -	<u>2,000</u>	<u>0</u>	<u>0</u>	400	0	0
				<u>37</u>		

[Ch. cxlix.] *Scottish Episcopal Clergy Widows' and Orphans' Fund Order Confirmation Act, 1903.* [3 EDW. 7.]

A.D. 1903.

	£	s.	d.	£	s.	d.
Brought forward -	2,000	0	0	400	0	0
2. Bond and disposition in security for 3,160 <i>l.</i> by David Sinclair to the marriage contract trustees of the Reverend George and Mrs. Davidson secured over the estate of Altens in the county of Kincardine dated 15th and recorded in the division of the General Register of Sasines for the county of Kincardine 20th May 1879 to which the Society acquired right to the extent of 2,000 <i>l.</i> conform to assignation by said marriage contract trustees to the Society's trustees dated 4th and 6th and recorded in the said division of the General Register of Sasines 17th November 1882 - -	2,000	0	0			
3. Bond and disposition in security for 3,000 <i>l.</i> by the Honourable John Arbuthnot to Ann Forbes secured over the estate of Arbuthnot &c. dated 3rd and recorded in the General Register of Sasines 8th January 1851 to which the Society acquired right to the extent of 1,000 <i>l.</i> conform to assignation by the executor of William Gray to the Society's trustees dated 12th and recorded in the division of the General Register of Sasines for the county of Kincardine 18th May 1891 - - - - -	1,000	0	0			
4. Bond and disposition in security for 2,500 <i>l.</i> by the Honourable John Arbuthnot to the trustees of James Allan secured over the estate of Arbuthnot &c. dated 3rd and recorded in the General Register of Sasines 8th January 1851 to which the Society acquired right to the extent of 1,000 <i>l.</i> conform to assignation by the executor of William Gray to the Society's trustees dated 12th and recorded in the division of the General Register of Sasines for the county of Kincardine 18th May 1891 - -	1,000	0	0			
Carry forward -	6,000	0	0	400	0	0

[3 EDW. 7.] *Scottish Episcopal Clergy Widows' [Ch. cxlix.]
and Orphans' Fund Order Confirmation Act, 1903.*

	£	s.	d.	£	s.	d.	A.D. 1903.
Brought forward -	6,000	0	0	400	0	0	—
5. Bond and disposition in security for 500 <i>l.</i> by Thomas Clark to the Society's trustees secured over 133 Desswood Place Aberdeen dated 16th and recorded in the division of the General Register of Sasines for the county of Aberdeen 20th May 1898 - - -	500	0	0				
6. Bond and disposition in security above mentioned for 11,000 <i>l.</i> secured over the estate of Arbuthnot &c. and which is appropriated to the Special Funds to the extent of the balance of the above- mentioned sum of 1,700 <i>l.</i> viz. - -	228	15	0				
				6,728	15	0	
				£7,128	15	0	

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
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